

A More Rigorous Approach to Teaching the Reasoning Portion of Case Analysis:
A Key to Developing More Competent Law Students
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[draft]

The first skill that law schools teach their students is case briefing or, as I prefer to call it, case analysis.¹ However, law schools often teach this skill superficially. I can remember my first day of orientation when a senior professor taught my section case briefing. I was more confused coming out than I was going in.

In particular, the reasoning part of case analysis was very superficially taught when I was in law school. I can remember that for the reasoning section in most of my briefs I put “based on public policy.” Today, with legal writing teachers mostly teaching case analysis, this skill is better taught, but it still could be taught more rigorously by teaching students to go into more detail in their case analyses, especially in the reasoning portion. Today, education reformers are telling us that students need to be taught skills explicitly and in detail.² This should begin on the first day of law school with case briefing.

While there are many variations on case analysis, it basically comprise four parts: 1) facts, 2) issue, 3) holding, and 4) reasoning. Although all four parts are important, I tell my students that the reasoning section is the most important part because understanding the reasoning section shows the students how lawyers and judges think. I define the reasoning section as “the way that judges get from the issue to the holding by applying the relevant law to the material facts.” Then, as part of teaching the reasoning section, I teach my students to identify the kind of reasoning the judge is using and how the judge uses these types of reasoning to come up with the holding.³

After introducing the four main parts of a case analysis, professors should introduce students to the five main types of legal reasoning: 1) rule-based reasoning, 2) reasoning by analogy, 3) distinguishing cases (reverse reasoning by analogy), 4) policy-based reasoning, and 5) inductive reasoning (synthesis).⁴

With rule-based reasoning, a judge applies a rule (a statute, a case holding, or an administrative regulation) to a set of facts.⁵ Rule-based reasoning is a type of deductive or syllogistic reasoning. Ex.: Rule: A contract clause is unenforceable if it is unfair to one of the parties and the party against whom the clause is being enforced lacked bargaining power at the time of contracting. Facts: Plaintiff, a big corporation, is trying to enforce a contract clause against the defendant, a consumer, which waives all warranties, including statutory warranties. Defendant claims that this clause is unconscionable. The judge determines that the waiver clause is unfair to the consumer and that the consumer lacked bargaining power against the big corporation. The judge then decides that these facts satisfy the rule so the judge voids the clause as unconscionable.⁶

Reasoning by analogy in the law occurs when a judge states that the facts of the precedent case are like the facts of the present case so that the rule of the precedent case applies to the present case.⁷ Reasoning by analogy can also involve showing that the reasoning of case A applies to the present case so that the rule from case A applies to the present case. Ex. Case A: A judge held that strict liability applies to a case in which a tiger caused serious personal injury to the plaintiff because a tiger is an inherently dangerous animal and a person who owns a tiger should be liable for serious personal injuries caused by that animal even if that person is not negligent. Present case: A pit bull attacks a man causing serious personal injuries. The plaintiff

cannot prove that the pit bull owner was negligent. Reasoning by analogy: The judge rules for the defendant on the ground that a pit bull is like a tiger (both are inherently dangerous animals) so the strict liability rule applies to the present case.

With distinguishing cases, the judge determines that the facts of the precedent case are not like the facts of the present case so that the rule from the precedent case does not apply to the present case.⁸ Ex.: Case A: A judge held that strict liability applies to a case where a tiger caused serious personal injury to the plaintiff because a tiger is an inherently dangerous animal and a person who owns a tiger should be liable for serious personal injuries even if that person is not negligent. Present case: A toy poodle attacks a man causing serious personal injuries. The plaintiff cannot prove that the poodle owner was negligent. Distinguishing the cases: The judge decides that, unlike a tiger, a toy poodle is not an inherently dangerous animal so the judge does not apply the strict liability rule from case A to the present case.

Judges employ inductive reasoning to synthesize rules.⁹ They look at the holdings from the relevant cases and by synthesizing those cases, they come up with a general rule. More specifically, they look at the similarities among the facts of the precedent cases and the differences among the facts of those cases and how these similarities and differences affect the outcome. They also look at the reasoning behind the holdings of the relevant cases and how the reasoning affects the outcome. Ex.: There are five cases in this jurisdiction that concern when a contract clause is unconscionable. The judge synthesizes the rule from these cases to develop a rule for the present case.

Finally, with policy based-reasoning, the judge determines that applying a particular rule to a case would create a precedent that is good for society.¹⁰ Ex.: A state supreme court decides

that applying strict liability to cases involving defective products is good policy because it is often hard for a consumer to prove that the manufacturer was negligent.

After discussing the types of legal reasoning, the professor should show where they are in a case or cases. I use *J'Aire Corp. v. Gregory*.¹¹ In the first paragraph on page 802, the judge introduces the case, and she presents the issue in the third sentence. The rest of the page contains facts and procedure, which continues on the next page. At II (1) on 803, the judge gives the standard for evaluating a demur and restates the issue. At (2) where the main analysis begins, we find a general rule for negligence, and the judge gradually develops more specific rules throughout (2), (3), (4), and (5). (4) contains a detailed holding from several wills cases, “intended beneficiaries of wills [can] sue to recover legacies lost through the negligent preparation of the will,” and (5) presents a six-factor test (a rule) synthesized in an earlier case.

I then show in detail how the judge in (6a) applies the six-factor test to the facts of *J'Aire*. (rule-based reasoning) At (7), the court points out that “It is settled that a contractor owes a duty to avoid injury to the person or property of third parties. . . . injury to a tenant's business can often result in greater hardship than damage to a tenant's person or property.” (policy-based reasoning and reasoning by analogy) (6b) then states, “Where the risk of harm is foreseeable, as it was in the present case, an injury to the plaintiff's economic interests should not go uncompensated merely because it was unaccompanied by any injury to his person or property.” (policy-based reasoning)

The last paragraph on 805 declares that allowing recovery under this case's facts would be consistent with recent trends in tort law (policy-based reasoning), then it ties this principle in with foreseeability. The first full paragraph on 806 then shows that the court's determination is

consistent with public policy as expressed by the legislature in a statute. The last paragraph on 806 and the first two paragraphs on 807 distinguish cases cited by the losing party. In class, I show how the court distinguishes these cases in detail. The last paragraph on 807 and the first paragraph on 808 distinguish policy arguments raised by the losing side. III gives the holding and the outcome.

There is one more ground for supporting the holding of the case that is implicitly contained in the case. On page 804, the court wrote that several cases “held that intended beneficiaries of wills could sue to recover legacies lost through the negligent preparation of the will.” This holding can be applied to *J’Aire* through reasoning by analogy. In the wills cases, a lawyer had a special duty to the beneficiaries of a will to write a valid will, even though the beneficiaries lacked privity of contract with the beneficiaries. The testator was the lawyer’s client. In *J’Aire*, a contractor who was repairing premises leased by the plaintiff, a restaurant, failed to make the repairs in a reasonable amount of time, causing the restaurant to lose profits. The contract was with the owner of the premises, an airport, so the restaurant lacked privity with the restaurant. Although the cases involve very different subject matter, the relationship among the parties in both cases is the same. In the wills cases, a lawyer (the defendant), wrote an invalid will that caused the beneficiaries (the plaintiffs) to lose their inheritances (monetary damages). The court ruled that the plaintiffs should recover even though they weren’t in contractual privity with the defendants. Similarly, in *J’Aire*, a contractor (the defendant) had caused the restaurant to lose profits (monetary damages). Consequently, the judge in *J’Aire* allowed the plaintiff to recover from the defendant even though it was not in contractual privity with the defendant. This is a creative illustration of reasoning by analogy.

After introducing students to this more rigorous approach to briefing, I have them analysis several cases using the approach, both in and outside class throughout the semester. I also encourage them to mark the type of legal reasoning the judges use in the cases they read for their other classes. It will take a few weeks for students to fully develop this skill, but I think that they should be able identify the kinds of reasoning a judge is using and how the judge is using it in detail in every case they read.

I have spent so long on *J'Aire* because it illustrates the kind of case analysis that I think that students should be able to do at the end of their first semester. If students can do this, they will better understanding legal reasoning and how lawyers think and be better prepared for their advanced skills courses. Teaching students to understand what type of legal reasoning a judge is using is one of the keys to developing better law graduates.

1. I prefer case analysis because analysis means to break into parts, and this is what one does when briefing cases.
2. Paul R. Pintrich, *The Role of Metacognitive Knowledge in Learning, Teaching, and Assessing*, 41 *THEORY INTO PRACTICE* 219, 223 (2002); *see also* SUSAN A. AMBROSE ET.AL., *HOW LEARNING WORKS: 7 RESEARCH-BASED PRINCIPLES FOR SMART TEACHING* 205 (2010) Anthony S. Niedwiecki, *Lawyers and Learning: A Metacognitive Approach to Legal Education*, 13 *WIDENER L. REV.* 33, 60 (2006) (“A good teacher expressly tells her students what she wants them to learn.”).
3. You do not necessarily have to do all of this in the first class. These skills should be taught throughout the first semester.
4. E. SCOTT FRUEHWALD, *THINK LIKE A LAWYER: LEGAL REASONING FOR LAW STUDENTS AND BUSINESS PROFESSIONALS* 1-9.
5. *Id.* at 1-2.
6. In real life, the judge would go into a little more detail.
7. *Id.* at 2.

8. *Id.* at 2.

9. *Id.* at 3.

10. *Id.* at 3.

11. 24 Cal.3d 799 (1979). I am using the Cal.3d version of the case because the page numbers are present in the google scholar version of this case and this version is easy to read. You should follow the case as you read my analysis.